

The U.P. Secondary Education Services Commission (Removal of Difficulties) Order, 1981

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State of Uttar Pradesh - Act

The U.P. Secondary Education Services Commission (Removal of Difficulties) Order, 1981

UTTAR PRADESH

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The U.P. Secondary Education Services Commission (Removal of Difficulties) Order, 1981

Rule THE-U-P-SECONDARY-EDUCATION-SERVICES-COMMISSION-REMOVAL-OF-DIFFICULTIES-ORDER-1981 of 1981

Published on 31 July 1981

Commenced on 31 July 1981

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The U.P. Secondary Education Services Commission (Removal of Difficulties) Order, 1981

Published Vide Notification No. Ma-4993/15 - 7-1(79)-81, dated 31.7.1981.

Rescinded vide U.P. Act No. 13 of 1999 (w.e.f. 25.1.1999).

Whereas, the Uttar Pradesh Secondary Education Services Commission and Selection Boards Ordinance, 1981 (U.P. Ordinance No. 8 of 1981) was promulgated on July 10, 1981 with a view to establish a Secondary Education Services Commission and six or more Secondary Education Selection Boards for selection of teachers in institutions recognised under the Intermediate Education Act. 1921;

And, whereas, the establishment of the Commission and the selection Boards is likely to take some time and even after

establishment of the said Commission and Boards, it is not possible to make selection of the teachers for the first few months;

And, whereas, a number of vacancies in the posts of teachers in various institutions recognised under the Intermediate Education Act, 1921 exist and the failure or delay in filling up of such vacancies is likely to create difficulties;

Now, therefore, in exercise of the powers under Section 33 of the Uttar Pradesh Secondary Education Services Commission and Selection Boards Ordinance, 1981 (U.P. Ordinance No. 8 of 1981), the Governor is pleased to direct that the provisions of the said Ordinance shall have effect subject to the provisions of the following Order :

1.

Short title and commencement

. - (1) This Order may be called the Uttar Pradesh Secondary Education Services Commission (Removal of Difficulties) Order, 1981.

(2)

It shall come into force at once.

2.

Vacancies in which ad hoc appointment can be made

. - The management of an institution may appoint by promotion or by direct recruitment a teacher on purely ad hoc basis in accordance with the provisions of this Order in the following cases, namely :-

(a)

in the case of a substantive vacancy existing on the date of commencement of this Order caused by death, retirement, resignation or otherwise;

(b)

in the case of a leave vacancy, where the whole or unexpired portion of the leave is for a period exceeding two months on the date of such commencement;

(c)

where a vacancy of the nature specified in clause (a) or clause (b) comes into existence within a period of two months subsequent to the date of such commencement.

3.

Duration of ad hoc appointments

. - Every appointment of an ad hoc teacher under Paragraph 2 shall cease to have effect from the earliest of the following dates, namely :-

(a)

when the candidate recommended by the Commission or the Board joins the post; or

(b)

when the period of six months from the date of such ad hoc appointment expires.

4.

Ad hoc appointment by promotion

. - (1) Every vacancy in the post of the Head of an institution may be filled by promotion :

(a)

in the case of an Intermediate College, by the senior most teacher of the institution in the lecturer's grade;

(b)

in the case of a High School raised to the level of an Intermediate College, by the Headmaster of such High School;

(c)

in the case of a Junior High School raised to the level of a High School, by the Headmaster of such junior High School.

(2)

Every vacancy in the post of a teacher in Lecturer's grade may be filled by promotion by the senior most teacher of the Institution in the trained graduate (L.T.) grade.

(3)

Every vacancy in the post of a teacher in the trained graduate (L.T.) grade shall be filled by promotion by the senior most teacher of the Institution in the trained undergraduate (C.T.) grade.

(4)

Every vacancy in the post of a teacher in the trained undergraduate (C.T.) grade shall be filled by promotion by the

senior most teacher of the Institution in the J.T.C. grade or B.T.C. grade.

Explanation. - For the purposes of clauses (1) to (4) of this paragraph the expression "senior most teacher" means the teacher having longest continuous service in the institution in the lecturer's grade or the trained graduate (L.T.) grade, or trained undergraduate (C.T.) grade or J.T.C. or B.T.C. grade, as the case may be.

5.

Ad hoc appointment by direct recruitment

. - (1) Where any vacancy cannot be filled by promotion under Paragraph 4, the same may be filled by direct recruitment in accordance with clauses (2) to (5).

(2)

The management shall, as soon as may be, inform the District Inspector of Schools about the details of the vacancy and such Inspector shall invite applications from the local Employment Exchange and also through public advertisement in at least two newspapers having adequate circulation in Uttar Pradesh.

(3)

Every application referred to in clause (2) shall be addressed to the District Inspector of Schools and shall be accompanied -

(a)

by a crossed postal order worth ten rupees payable to such Inspector;

(b)

by a self addressed envelope bearing postal stamp for purposes of registration.

(4)

The District Inspector of Schools shall cause the best candidates selected on the basis of quality specified in Appendix. The compilation of quality points may be done on remunerative basis by the retired Gazetted Government servants under the personal supervision of such Inspector.

(5)

If more than one teacher of the same subject or category is to be recruited for more than one institution, the names of the selected teachers and the names of the institutions shall be arranged in Hindi alphabetical order. The candidate whose name appears on the top of the list shall be allotted to the institution the name whereof appears on the top of the list of the institution. This process shall be repeated till both the lists are exhausted.

Explanation. - In relation to an institution imparting instruction to women the expression "District Inspector of Schools" shall mean the "Regional Inspectress of Girls Schools".

6.

Eligibility for appointment

. - Every appointment of a teacher under Paragraph 4 or 5 shall be subject to the following conditions, namely :-

(a)

The candidate sought to be appointed by promotion or by direct recruitment must fulfil the essential qualifications laid down in Appendix A referred to in the Regulation (1) of Chapter II of the Regulations made under the Intermediate Education Act, 1921.

(b)

The candidate sought to be appointed by direct recruitment under Paragraph 5 shall not be related to any member of the Committee of Management in the manner indicated in schedule II of the Intermediate Education Act, 1921.

(c)

The candidate sought to be appointed by promotion under Paragraph 4 must have been serving the institution in substantive capacity from before the date of commencement of this Order.

7.

Disputes to be referred to Director

. - (1) Every dispute connected with the promotion or direct recruitment under this Order shall be referred to the Director and his decision thereon shall be final.

(2)

Without prejudice to the generality of clause (1), the Director shall have the power to look into the complaint, if any, regarding the award of the quality points mentioned in Appendix or the validity or propriety of any promotion or direct recruitment in accordance with this Order and to cancel any promotion, recruitment or appointment made in

contravention of such Order.

APPENDIX

(See Paragraphs 5 and 7)

Quality point marks for selection of teachers by direct recruitment

(1) Trained undergraduate's grade (C.T. and
B.T.C.)

Examination

First Division

Second Division

Third Division

1. High School

10

5

1

2. Intermediate

20

10

6

3. Graduate's degree

....

....

....

4. Post-Graduate degree

....

....

....

5. Training

12

6

3

(2) Trained graduate's grade (L.T.)

Examination

First Division

Second Division

Third Division

1. High School

4

2

1

2. Intermediate

8

4

2

3. Graduate's degree

16

8

4

4. Post-Graduate degree

....

....

....

5. Training

12

6

3

(3) Lecturer's Grade

Examination

First Division

Second Division

Third Division

1. High School

4

2

1

2. Intermediate

8

4

2

3. Graduate's degree

16

8

4

4. Post-Graduate degree

32

16

8

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